

H C J D A 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT
JUDICIAL DEPARTMENT

Criminal Revision No. 8188 of 2021,
(Dr. Faheem Ikram Butt vs. The State)

J U D G M E N T

Date of hearing.	13.11.2025.
Appellant by:-	Ch. Ahsan Gujjar, Advocate with petitioner Dr. Faheem Ikram Butt.
Respondent (State) by	Hammad Iftikhar Syed and Rao Atif Khan, Deputy District Public Prosecutors.

TANVEER AHMAD SHEIKH, J.:- According to the brief facts emanating out of present petition, a case titled “The State Vs. Nadeem Khan etc” was pending before the Court of learned Senior Civil Judge (Criminal Division), Narowal wherein Dr. Shakeela Akhtar WMO, RHC, Ahmadabad was summoned to appear as a witness. On the date of hearing of the said case, i.e. 08.05.2019, the petitioner Dr. Faheem Akhtar appeared before the Court in ferocious and violent mode and shouted before the Court as to why his wife lady Dr. Shakeela WMO was summoned. He was asked by the presiding Officer to remain decorous and maintain the dignity of the Court, but he became more aggressive and started shouting at the Court and hurdle threats to the Court.

2. Petitioner was proceeded against under Section 228 of PPC. He was convicted for the above offence and sentenced to imprisonments for three days alongwith a fine of Rs.1500/- or in

default of the payment thereof, he was directed to undergo further S.I. for one day, vide judgment dated 08.05.2019.

3. Petitioner assailed his conviction and sentence before the Court of Sessions Judge and his appeal was dismissed through the impugned judgment dated 15.12.2020, passed by learned Addl. Sessions Judge, Narowal, hence the present revision petition.

4. Learned counsel for the petitioner mainly focused on the points that the judgments passed by both the Courts below were not in accordance with law; petitioner neither caused any insult towards the learned Presiding Officer/trial Court, nor he addressed the Court in offensive manner; petitioner appeared only to apprise that his wife Dr. Shakeela Akhtar WMO was not available today and made request for adjournment; proceedings were conducted in haste and slipshod manner; neither the requirements prescribed by Section 476 of Cr.P.C., nor that of Section 480 of Cr.P.C. were observed by the learned trial Court; moreover, it was manifest from the judgment of the learned trial Court that the petitioner/accused was not present in the Court, as such whole of the proceedings were conducted by the learned trial Court in his absence; judgments passed by both the Courts below were suffering from illegalities, hence liable to be set aside.

5. Conversely, the learned Deputy Prosecutor General, Punjab disputed the above contentions and maintained that under Section 480 of Cr.P.C., the learned trial Court can convict and sentence a contemnor/offender there and then and even reply of the show cause notice from contemnor is not necessary; both the

judgments passed by Courts below have fulfilled all the legal requirements; judgments are self-explanatory and reflecting that petitioner was rightly convicted for causing insult towards the learned trial Court and he was not entitled to any leniency.

6. Arguments heard. Record perused.

7. When a person commits an offence under Section 228 of PPC **in the view or presence of the court**, the court has three options. The court may either proceed under Section 480 of Cr.P.C., or under Section 476 of Cr.P.C., or forward the case to learned Magistrate under Section 482 of Code of Criminal Procedure, having jurisdiction to try the same. If the court intends to proceed against the offender and complete the proceedings same day, the court shall proceed under Section 480 of Cr.P.C. and shall cause the offender to be detained in custody and at any time before rising of the court on the same day may take the cognizance of the offence and sentence the offender to a fine not exceeding two hundred rupees and in default of the payment to simple imprisonment for a term which may extend to one month. Language used in Section 480 of Cr.P.C. indicates that sentence of the fine of two hundred rupees is substantive sentence, whereas sentence of the imprisonment extending upto one month is of secondary nature, which has to be resorted to only if the offender fails to pay the fine. If the court desires to impose the sentence exceeding the above sentence, the court may have a resort to Section 476 of Cr.P.C. and try the offender in accordance with the procedure prescribed for summary trial in Chapter XXII (Sec.260 to 265 Cr.P.C.). Section 482 of Cr.P.C. deals with the situation, where court considers not to involve itself in the matter, the court may have a resort to Section 482 of

Cr.P.C. and may forward the case to a Magistrate having jurisdiction to try the same. All the said provisions have always to be read in conjunction with each other, which are being produced below for the facility of reference.

“Sec. 476. Procedure in cases mentioned in Section 195: When any offence referred to in Section 195, sub-section (1), clause(b) or clause (c), has been committed in or in relation to a proceeding in any Civil, Revenue or Criminal Court, the Court may take cognizance of the offence and try the same in accordance with the procedure prescribed for summary trials in Chapter XXII.

(2) When in any case tried under sub-section (1) the Court finds the offender guilty, it may, notwithstanding anything contained in sub-section (2) of Section 262-

- (a) pass any sentence on the offender authorised by law for such offence, except sentence of death, or imprisonment for life. or imprisonment exceeding five years, if such Court be a High Court, a Court of Session, a District Court or any Court exercising the power of a Court of Session or a District Court;
- (b) sentence the offender to simple imprisonment for a term which may extend to three months, or to pay a fine not exceeding one thousand rupees, or both, if such Court be a Court of a Magistrate of the First Class, a Civil Court other than a High Court, a District Court or a Court exercising the powers of a District Court, or a Revenue Court no inferior to Court of Collector.
- (c) sentence the offender to simple imprisonment for a term not exceeding on[^] month, or to pay a fine not exceeding fifty rupees, or both, if such Court be a Criminal Court or a Revenue Court other than a Court referred to in clause (a) or clause (b).

(3) The powers conferred on Civil, Revenue and Criminal Courts under this section may be exercised in respect of any offence referred to in sub-

section (1) and alleged to have been committed in relation to any proceeding in such Court by the Court to which such former Court is subordinate within the meaning of sub-section (3) of Section 195.

(4) Any person sentenced by any Court under this section may, notwithstanding anything hereinbefore contained; appeal-

- (a) in the case of a sentence by the, High Court, to the Supreme Court.
- (b) in the case of a, sentence by a Court of Session, or District Courts of a Court, exercising the powers of a Court of Session-or a District Court, to the High Court; and
- (c) in any other case, to the Sessions Judge.

(5) The provisions of Chapter XXXI shall, so far as they are applicable, apply to appeals under this section and the Appellate Court may alter the finding or reduce or enhance the sentence appealed against.”

“Sec. 480. Procedure in certain cases of contempt.

(1) When any such offences as is described in Section 175, Section 178, Section 179, Section 180, Section 228 of the Pakistan Penal Code is committed in the view or presence of any Civil, Criminal or Revenue Court, the Court may cause the offender to be detained in custody and at any time before the rising of the Court on the same day may, if it thins fit, take cognizance of the offence and sentence the offender to fine, nor exceeding two hundred rupees, and, in default of payment, to simple imprisonment for a term which may extend to one month, unless such fine be sooner paid.”

“Sec. 482. Procedure where Court considers that case should not be dealt with under section 480.

(1) If the Court in any case considers that a person accused of any of the offences referred to in section 480 and committed in its view or presence should be imprisoned otherwise than in default of payment of fine, or that a fine exceeding two hundred rupees should be imposed upon him, or such Court is for any other reason of opinion that the case should not be disposed of under

section 480, such Court after recording the facts constituting the offence and the statement of the accused as hereinbefore provided, may forward the case to a Magistrate having jurisdiction to try the same and may require security to be given for the appearance of such accused person before such Magistrate or if sufficient security is not given, shall forward such person in custody to such Magistrate.

(2) The Magistrate, to whom any case is forward under this section, shall proceed to hear to the complaint against the accused person in manner hereinafter provided.”

8. Combined effect and critical analysis of the above said provisions is that when court proceeds under Section 480 of Cr.P.C., the said provision places a limitation on the power of the court regarding the quantum of punishment. In such case, the court may impose the sentence of fine of Rs.200/- only, or may impose the sentence of imprisonment extending upto one month, only if the fine has not been paid. If the court is of the opinion that said sentence is not appropriate in the facts and circumstances of the case, the court may initiate the proceedings against the offender under Section 476 of Cr.P.C. and shall observe entire process of summary trial prescribed under Sections 260 to 265 of Cr.P.C. Under Section 476 of Cr.P.C. a Magistrate or Civil Court may impose the sentence of imprisonment extending upto three months or fine not exceeding one thousand rupees, or both.

9. In the case in hand, the learned trial court passed the sentence of imprisonment of three days along with fine of Rs.1500/-, while proceeding under Section 480 of Code of Criminal Procedure and convicting the petitioner for an offence under Section 228 of PPC. The learned court was not competent to impose the sentence of fine not more than rupees two hundred

or to sentence him to simple imprisonment extending upto one month only in case of the non-payment of the fine, as such learned trial court travelled beyond its jurisdiction, hence committed illegality.

Moreover, record speaks that petitioner refused to receive the show cause notice and to submit reply thereto and fled away after the conviction. Possibility cannot be ruled out that whole of the proceedings were completed after fleeing away of the petitioner from the learned trial court. It has also been well settled that summary proceedings cannot be made more summary. If any reference in this regard is required, that can be had from the case titled 'Rup Chand Vs. State' (AIR 1956 Allahabad 399). Above said illegality reflecting from the judgment of the learned trial court and overlooked by the learned appellate court is not curable under any of the provisions of Code of Criminal Procedure. I, therefore, accept present criminal revision petition and set aside the conviction and sentence awarded to petitioner by learned trial court and upheld by learned appellate court.

(Tanveer Ahmad Sheikh)
Judge

APPROVED FOR REPORTING.

Judge